

DW1

SCS no. 52/2013/A

IN THE COURT OF CIVIL JUDGE SENIOR DIVISION,
AT PANAJI

SCS

No.52/12013/A

Exh. No. C/143

Deposition of witness no. DW1 for the defendant.

On Oath

I do hereby on Solemn affirmation state that

My Name : Vikram Shah

Father Name: Chinubhai Shah

Age : 72 yrs

Occupation : Business

Resident : Mumbai, Maharashtra

**Examination in Chief of PW1 by Ld. Adv. P. Rao for
the Defendant no.20**

I am producing affidavit in evidence. I affirm the contents of my affidavit. The witness identifies his signature at point A on page 23. Same is taken on record and marked as **Exhibit C/144**.

I am producing true copy the extract of the Resolution taken in the meeting of BOD of defendant no.20.

Ld. Adv. P. Gawandi objected on the ground that the defendant no. 2 had not relied on the said document

Order: Since the authorization given to the witness by the company cannot be strictly construed as a



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document, said objection is rejected.

Same is taken on record and marked as **Exhibit C/145**.

I am producing notarized copy of the Form No. I and XIV of survey nos. 93/2, 93/3 and 93/4 (manually issued), same are taken on record after comparing with the original and marked as **Exhibit C/146 colly**.

I am relying on the copies of the Deed of Sale dated 25.4.2006 in respect of survey no. 93/3, Deed of Sale dated 25.4.2006 in respect of survey no. 93/2, Deed of Sale dated 25.4.2006 in respect of survey no. 93/4 produced by the plaintiff which are at Exhibit 110 colly.

In addition to the above I am producing notarized copy of Sale Deed dated 25.4.2006 in respect of survey no. 93/3, same is taken on record after comparing with the original and marked as **Exhibit C/147**.

I am producing notarized copy of Sale Deed dated 25.4.2006 in respect of survey no. 93/4, same is taken on record after comparing with the original and marked as **Exhibit C/148**.

I am producing notarized copy of Sanad dated 16.12.2011 issued by Collector North Goa alongwith the plan in respect of survey no. 93/3. Same is taken on

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record after comparing with the original and marked as **Exhibit C/149.**

I am producing notarized copy of Sanad dated 16.12.2011 issued by Collector North Goa alongwith the plan in respect of survey no. 93/4. Same is taken on record after comparing with the original and marked as **Exhibit C/150.**

I am producing notarized copy of technical clearance order dated 27/02/2013 issued by Town and Country Planning Department in respect of survey no. 93/3. Same is taken on record after comparing with the original and marked as **Exhibit C/151.**

I am producing notarized copy of technical clearance order dated 27/08/2012 issued by Town and Country Planning Department in respect of survey no. 93/4. Same is taken on record after comparing with the original and marked as **Exhibit C/152.**

I am producing notarized copy of No Objection Certificate dated 13/03/2013 issued by Health Department in respect of survey no. 93/3. Same is taken on record after comparing with the original and marked as **Exhibit C/153.**

I am producing notarized copy of No Objection Certificate dated 21/09/2012 issued by Health

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Department in respect of survey no. 93/4. Same is taken on record after comparing with the original and marked as **Exhibit C/154**.

I am producing the notarized copy of Construction licence dated 16/04/2013 issued by Goa State Environment Impact Assessment Authority in respect of survey no. 93/4. Same is taken on record after comparing with the original and marked as **Exhibit C/155**.

I am producing the notarized copy of Construction licence dated 16/04/2013 issued by V.P. Bambolim. Same is taken on record after comparing with the original and marked as **Exhibit C/156**.

I am producing the notarized copy of Construction licence dated 30/03/2013 issued by V.P. Bambolim. Same is taken on record after comparing with the original and marked as **Exhibit C/157**.

Cross Examination by Id. Advocate P. Kamat for the Plaintiff

It is true that defendant no. 20 has not filed any written statement. I say that def no. 20 has adopted the statement of def. no. 1 and 2. I do not have any document to show that def. no. 20 had adopted written

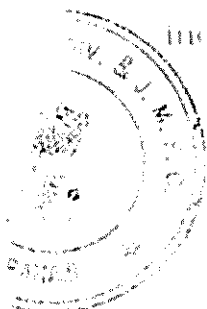


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statement if Def. no. 1 and 2. It is not true to suggest that the affidavit tendered by me today is not as per the provisions of law, in absence of pleading. It is not true to suggest that the contents of para 1,2 and 3. With reference to para 4 of AIE, the documents mentioned therein are Form No. 1 and XIV and besides that there are no other documents. It is not true to suggest that the contents of para 4 and 5 are false. At present I do not have any documents in my possession to substantiate my statement in para 6 of AIE. I can produce these said documents. It is not true to suggest that my statements in para 6 to 10, 12, 13 are false. With reference to para 13 AIE I do not have any documents except Form No. 1 and XIV in relation to the properties mentioned therein. I do not have any expert report or corresponding certificate in relation to the present survey number and properties mentioned in para 13 for identification of the properties. I say that I can produce the same.

Q. Can you tell the details of undertaking and commitments given by the confirming party and the purchaser as per the clause 2 in all the three sale deeds including Exh. C-47 and 48?



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Ans - Said commitments were given by the confirming party (Raghurai Tamba) to the comunidade in the consent terms filed in respect of the property under survey No. 89/3. to allot 45 plots altogether in the properties surveyed under No. 93/2, 3 and 4. However these properties were not subject matter of the said suit. I am aware of CMA 6/2010 is filed by the comunidade to set aside the above consent decree and it is still pending. I have read the contents of the consent decree.

It is not true to suggest that in the said consent decree it was mentioned that unless and until the said plots were allotted to the comunidade the suit property could not be sold. It is true that all the three sale deeds were executed by the vendors and confirming parties to def. No. 1 without complying the terms and conditions of the consent decree. I voluntarily say that since the plots to be given to the comunidade were not developed, the def. No.1 undertook the responsibility of complying the terms and conditions of the consent decree. It is not true to suggest that my preceding statement is false. I do not know the total area of the properties named in the schedule-1 of all three sale



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deeds. I am not aware if the consent decree was obtained without prior approval and permission from Administrative Tribunal as per provision of Code of Comunidade. I have not produced the sale deed by which the def. No. 20 has purchased the part of the suit property. I say that the sale deed is produced by the plaintiff. I am not aware if our sale deed was executed after filling of the present suit. It is not true to suggest that sale deed executed in favor of Def. No. 20 are illegal. It is not true suggest that all the three sale deeds in favor of Def. No. 1 and 2 are illegal. It is not true to suggest that contents of para 15 to 20 of AIE are false. The statement made in para 19 is made in the year 2007. In the year 2007, the def no. 20 did not purchase any portion of the suit properties. I am aware about the pendency of the civil suit no. 66/2009 pending before the district court filed by the member of the comunidade and the plaintiff in which def. no. 20 is the party. I am not aware if the decree in RCS 6/2007 is challenged by the plaintiff.

Further cross deferred for want of time.

R.O.A.E.C.

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Panaji

Dated: 20.04.2022

Certified that the examination
of this witness is recorded in
my presence and hearing.

Before me

SCJ 'A' Court,
Panaji

A' Court, Panaji

MP:

Checked with original



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Further Cross Examination by Ld. Advocate P. Kamat
for the Plaintiff

I do not know whether the decree mentioned in para 21 of my AIE was passed solely based on the admission of the defendant. I have not read the contents of the said decree. I have seen the said decree. It is not true to suggest that the contents of para 21 of my AIE are false. I have not read the contents of application mentioned in para 23 and the order passed by the Dy. Collector as stated in para 24 of AIE. Said application was made and the case was pursued by Pascoal Trinidad. It is not true to suggest that the contents of para 23, 24 and 25 of my AIE are false.

With reference to para 26 I have not read the contents of plaint and written statement in both the suits. I do not know who had drafted and approved the consent terms mentioned in para 27 of AIE. Defendant no.20 had taken a legal opinion regarding the consent decree mentioned in para 27 at the time of purchase of the property by Pascoal Trinidad. Now I say that Pascoal Trinidad had taken the legal opinion and not the defendant no.20. It is not true to suggest that the contents of para 27, 28, 29 of my AIE are not to my



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knowledge.

It is not true to suggest that the contents of para 30 of my AIE are false. The name of defendant no.1 is reflecting in the survey records pertaining to the suit property from year 2007. it is true that prior to 2007. The names of the persons in the other rights column and tenant's column was appearing and same were deleted by the Order of Dy. Collector.

Q. With reference to para 32 can you explain how the consent terms, consent decree were in public domain?

Ans: I say that both the above documents could be availed by any person by making application to the concerned authorities.

With reference to para 33, 34 and 35 of my AIE said information was provided to me by Pascoal Trindade and he had also shown us the correspondence. I am aware that Pascoal Trindade has expired and his wife and son are parties to the suit and further that they have not lead any evidence in this suit till date.

With reference to para 36 to 40 of my AIE, the information was given to me by Pascoal Trindade and I have personally seen all the documents. It is not true

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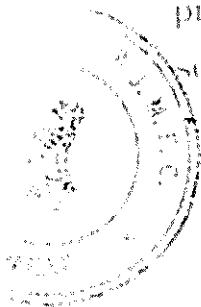
to suggest that the contents of para 37, 38, 39 and 40 of my AIE are false. I have read the orders of the High Court and Supreme Court mentioned in para 42, 43 and 44. It is not true to suggest that the contents of para 41 to 44 of my AIE are false.

With reference to para 45 to 49 of my AIE, the permissions and documents mentioned therein were obtained by Pascoal Trindade and not by defendant no.20. I do not know that the permissions and documents mentioned herein above were obtained during pendency of the application for setting aside the decree in SCS 222/94/B filed by the Comunidade.

It is not true to suggest that the contents of paras 45 to 50 of my AIE are false.

It is true that the transaction of sale mentioned in para 51 of my AIE was done subsequent of filing of the present suit and during pendency of the application for setting aside the decree in SCS 222/94/B filed by the Comunidade and Civil Suit 66/2009 before the District Court. It is not true to suggest that the contents of paras 52, 63 of my AIE are false.

To the suggestion that during the pendency of the present suit defendant no.1 gave proposal for settlement to the plaintiff and defendant no.20 is also



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party to the said proposal. I say that I am aware that both the parties have agreed to settle the matter. One of the settlement term is that defendant no. 20 has agreed to allot 5,000 sq. mts. from survey no. 93/2 purchased by them to the plaintiff, subject to condition that suit filed by the Comunidade shall be withdrawn and there shall be no any claim against the defendant. I am not aware about the amount agreed to be paid by the defendant no.1 to the Comunidade. It is not true to suggest that I am deposing falsely.

At this Stage Ld. Advocate Rao for the defendant no.20 requests that the witness may be permitted to be re-examined for the limited purpose of exhibiting documents pertaining to the title in respect of the suit property which were not available in the hands of the witness who is the authorised representative of defendant no.20 yesterday during recording of his evidence.

In reply Ld. Advocate Kamat submits that as per evidence Act the re-examination is permissible only in case of existence of any ambiguity and not otherwise. In the present case there are no such ambiguity and therefore re-examination is not called for.



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Order: The production of the documents not relied by the party cannot be permitted to be produced under the re-examination. In case the witness wishes to rely on the same, the procedure contemplated under the law is to be followed. The prayer of Ld. Advocate Rao is totally beyond the scope of re-examination and hence same is rejected.



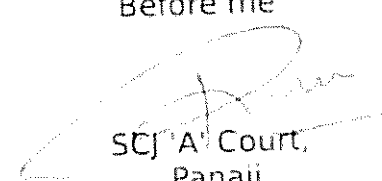
R.O.A.F.C.

Panaji

Dated: 21.04.2022

Certified that the examination of this witness is recorded in my presence and hearing.

Before me


SCJ 'A' Court,
Panaji

MP.

The said witness is examined

